

Smt. Tasneem Ahmad v. State of U.P.

Allahabad High Court · Division Bench · 8 February 2013 · WRIT - C No. 7298 of 2013 · **Writ disposed; grievance to EE; disconnection stayed three weeks.**

HEADNOTE

Informed that under Rule 6.45 of the Electricity Supply Code 2005 the petitioner could place her grievance before the concerned Executive Engineer, the Court disposed of the writ directing a speaking order preferably within three weeks of that move, and directed that the electricity connection would not be disconnected until that decision or three weeks, whichever was earlier.

FACTUAL SUMMARY

Smt. Tasneem Ahmad petitioned the Allahabad High Court against the State of U.P. and others in a writ concerning her electricity supply. Counsel for the respondents informed the Court that under Rule 6.45 of the Electricity Supply Code 2005 she could place her grievance before the concerned Executive Engineer. The Court disposed of the writ on that representation, directing a speaking order preferably within three weeks of the move, and staying disconnection until that decision or three weeks, whichever was earlier.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.45

grievance-before-executive-engineer

HOLDING

Where the licensee represents that the consumer may place her grievance before the concerned Executive Engineer under Rule 6.45 of the Electricity Supply Code 2005, the writ may be disposed of with a direction that the move will be attended by a speaking order preferably within three weeks, and disconnection stayed till that decision or three weeks, whichever is earlier. ¶ 1

FLAG Court cited 'Rule 6.45'; UP-2005 has no clause 6.45 (likely 6.4/6.5).

PRINCIPLE TAGS

relegate-to-statutory-remedy Informed that under Rule 6.45 of the Electricity Supply Code 2005 the petitioner could place her grievance before the concerned Executive Engineer, the Court disposed of the writ directing a speaking order preferably within three weeks of that move ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

Relegated to the Executive Engineer under the cited Rule 6.45; no finding on the bill or disconnection. ¶ 1